

25PSCV00843 25PSCV00843

County: los-angeles

Division: Civil Law and Motion

Department: 6

Hearing date: 2026-07-29

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Case Number: 25PSCV00843 Hearing Date: July 29, 2026 Dept: 6

CASE

NAME: Johnnie

Cornejo v. In-n-Out Burgers, et al.

Defendant

In-n-Out Burgers Motion to Deem Facts Admitted by Plaintiff Johnnie Cornejo and
Request for Sanctions

TENTATIVE

RULING

The Court GRANTS Defendant In-n-Out Burgers, Inc.'s Motion to Deem
Facts Admitted by Plaintiff Johnnie Cornejo and Request for Sanctions and hereby
deems the truth of the matters specified in In-n-Out's Request for Admissions,
Set One, admitted and conclusively established as to Plaintiff.

The Court DENIES Defendant In-n-Out Burgers, Inc.'s request for
sanctions.

Defendant In-n-Out Burgers, Inc. is
ordered to give notice of the Court's ruling within five calendar days of this
order.

BACKGROUND

This is a premises liability action. On March 11, 2025, plaintiff Johnnie
Cornejo (Plaintiff) filed this action against defendants In-n-Out Burgers
(In-n-Out), Doe Employee, and Does 1 to 100, alleging causes of action for negligence

and premises liability.

On June 17, 2026, Defendant In-n-Out moved to deem facts admitted by Plaintiff and for sanctions. Plaintiff did not oppose the Motion.

LEGAL

STANDARD

When a party fails to serve a timely response to a request for admission, the party propounding the request for admission may move for an order to deem the genuineness of any documents and the truth of any matters specified in the requests admitted. (Code Civ. Proc., § 2033.280, subd. (b).) A party who fails to provide timely responses waives any objections, including ones based on privilege or work product. (Id., § 2033.280, subd. (a).) “The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. It is mandatory that the court impose a monetary sanction... on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (Id., § 2033.280, subd. (c).)

DISCUSSION

Meet and Confer

Although meeting and conferring is not required before bringing motions to compel, this Court does require parties to meet and confer in person, by telephone, or by videoconference before bringing any motion. (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 404; Dept. 6 Courtroom Information, p. 2 of pdf.) The Court finds In-n-Out’s efforts to meet and confer before bringing this Motion sufficient. (Kwon Decl., ¶¶ 4, 7-11.)

Analysis

In-n-Out indicates having served Request for Admissions, Set One, on Plaintiff on September 15, 2025, but Plaintiff has not provided any responses as of the date of this Motion, despite being given extensions to respond. (Kwon Decl., ¶¶ 4, 11.) The Court finds In-n-Out’s Motion well taken

and therefore GRANTS the Motion. The Court hereby deems the truth of the matters specified in In-n-Out's Request for Admissions, Set One, admitted and conclusively established as to Plaintiff.

The Court DENIES In-n-Out's request for monetary sanctions. While monetary sanctions are generally mandatory under Code of Civil Procedure section 2033.280, subdivision (c), Code of Civil Procedure section 2023.040 specifies that "[a] request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought." In-n-Out's Notice of Motion fails to identify the party against whom the sanctions are sought and the type of sanction sought. (See generally, Notice of Motion; see also *Albrecht v. Superior Ct.* (1982) 132 Cal.App.3d 612, 619, citing *Mullane v. Central Hanover B. & T. Co.* (1950) 339 U.S. 306, 313 ["Notice and an opportunity to be heard must precede deprivations of life, liberty or property"].)

CONCLUSION

The Court GRANTS Defendant In-n-Out Burgers, Inc.'s Motion to Deem Facts Admitted by Plaintiff Johnnie Cornejo and Request for Sanctions and hereby deems the truth of the matters specified in In-n-Out's Request for Admissions, Set One, admitted and conclusively established as to Plaintiff.

The Court DENIES Defendant In-n-Out Burgers, Inc.'s request for sanctions.

Defendant In-n-Out Burgers, Inc. is ordered to give notice of the Court's ruling within five calendar days of this order.